

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
CALVIN SENNON and LATOYA SENNON

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. NICOLAS J.
PAGLIARULO (Shield No. 10917), P.O. BRIAN
C. HENN (Shield No. 19752), P.O. VINCENT
M. AFFATIGATO (Shield No. 1103), LT. KEVIN
I. LEVENSTEIN (Tax Reg. 948070) and P.O.
CHRISTOPHER S. ROSARIO (Shield No. 8702),

Defendants.
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Index No.:

SUMMONS

Plaintiff designates
KINGS County as the
place of trial.

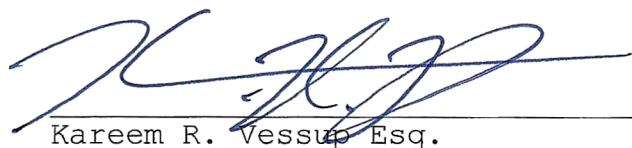
The basis of venue
is:
County where the
Tort arose

The tort arose in
Kings County.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
JANUARY 19, 2024



Kareem R. Vessup Esq.
THE VESSUP LAW FIRM, P.C.
Attorneys for Plaintiffs
CALVIN SENNON and LATOYA SENNON
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Jamaica, New York 11432
(718) 219-8744 - P
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Our File No. 23-1589

TO: The City of New York
C/o NYC Law Department
100 Church Street
New York, NY 10007

P.O. Nicholas J. Pagliarulo
NYPD 123rd Precinct
116 Main Street
Staten Island, NY 10307

P.O. Brian C. Henn
NYPD 69th Precinct
9720 Foster Avenue
Brooklyn, NY 11236

P.O. Vincent M. Affatigato
NYPD 122nd Precinct
2320 Hyland Blvd
Staten Island, NY 10306

Lt. Kevin I Levenstein
NYPD 69th Precinct
9720 Foster Avenue
Brooklyn, NY 11236

P.O. Christopher S. Rosario
NYPD Highway Unit 2
2900 Flatbush Avenue
Brooklyn, NY 11234

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CALVIN SENNON and LATOYA SENNON

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. NICOLAS J.
PAGLIARULO (Shield No. 10917), P.O. BRIAN
C. HENN (Shield No. 19752), P.O. VINCENT
M. AFFATIGATO (Shield No. 1103), LT.
KEVIN I. LEVENSTEIN (Tax Reg. 948070) and
P.O. CHRISTOPHER S. ROSARIO (Shield No.
8702),

Defendants.
-----X

Plaintiffs, by their attorneys, THE VESSUP LAW FIRM, P.C.,
complaining of the Defendants, respectfully allege, upon information
and belief, as follows:

1. At all times herein mentioned, Plaintiffs **CALVIN SENNON**
and **LATOYA SENNON** were, and still are, residents of the County of
Kings, City and State of New York.

2. At all times herein mentioned, Defendant **CITY OF NEW YORK**
was and still is a municipal corporation duly organized and existing
by virtue of the laws of the State of New York.

3. At all times herein mentioned, Defendant **CITY OF NEW YORK**
maintained and continues to maintain the New York City Police
Department, a duly authorized department of the **CITY OF NEW YORK**
authorized to perform all the functions of a police department as

per the applicable sections of the rules and regulations of the **CITY OF NEW YORK**.

4. At all times herein mentioned, Defendants **P.O. NICOLAS J. PAGLIARULO** (Shield No. 10917), **P.O. BRIAN C. HENN** (Shield No. 19752), **P.O. VINCENT M. AFFATIGATO** (Shield No. 1103), **LT. KEVIN I. LEVENSTEIN** (Tax Reg. 948070) and **P.O. CHRISTOPHER S. ROSARIO** (Shield No. 8702) were, and still are, duly sworn members of service of the New York City Police Department and were acting under the supervision of said department and according to their duties.

5. At all times hereinafter mentioned the individually named Defendants were acting as agents, servants and/or employees of the Defendant **THE CITY OF NEW YORK**.

6. Within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when, and place where, the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiffs' behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

7. That on January 19, 2024, pursuant to General Municipal Law Section 50(h), a hearing was held as scheduled by the Office of the Comptroller.

8. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

JURISDICTION

9. Jurisdiction is proper in that this cause of action is being brought in the county where the cause of action accrued.

10. All of the foregoing acts occurred within KINGS County, City and State of New York.

FACTS

11. On the evening of October 21, 2022, Plaintiff **LATOYA SENNON** was the driver of a motor vehicle that was stopped by members of the NYPD, including one or more of the named Defendants herein.

12. That vehicle was stopped in the driveway of Plaintiffs' home in the Canarsie section of Brooklyn.

13. While stopped, Plaintiff **LATOYA SENNON**, called her

husband Plaintiff **CALVIN SENNON** to advise him of this police stop.

14. Plaintiff **CALVIN SENNON** left his place of work to come home and see what was taking place.

15. Upon arriving at his home Plaintiff **CALVIN SENNON** exited his vehicle and began to record the officers interacting with his wife on his cell phone.

16. During the exchange the officers who were interacting with Plaintiff **LATOYA SENNON** turned their attention to Plaintiff **CALVIN SENNON** and threatened to issue him a summons and ultimately sought to arrest him without legal cause or justification.

17. Thereafter these police officers began to physically assault Plaintiff using their fists, bodies, OC spray and ultimately a taser.

18. This assault took place in front of Plaintiff **LATOYA SENNON** who was powerless to stop the officers.

19. As a result of this assault Plaintiff **CALVIN SENNON** suffered numerous physical injuries and exacerbations of preexisting medical conditions.

20. Plaintiff **CALVIN SENNON** was thereafter arrested and charged by Defendant **P.O. NICOLAS J. PAGLIARULO** with various crimes under the New York State Penal law including, but not limited to, resisting arrest, obstructing governmental administration and

driving under the influence of alcohol.

21. Defendant **P.O. NICOLAS J. PAGLIARULO** provided information to the Kings County District Attorney's Office for the purpose of having a criminal prosecution initiated against Plaintiff **CALVIN SENNON** wherein he would be prosecuted for the aforementioned crimes.

22. Plaintiff **CALVIN SENNON** was indeed prosecuted in Kings County Criminal Court beginning on or about October 22, 2022. Said prosecution continued until on or about August 21, 2023 when all charges against Plaintiff were dismissed by the Honorable Dale Fong-Frederick.

AS AND FOR A FIRST CAUSE OF ACTION

23. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "22" with the same force and effect as if restated herein.

24. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **CAKVIN SENNON**.

25. Defendants restrained Plaintiff **CALVIN SENNON** and interfered with his liberty and took him into custody without the proper authority to the NYPD 69th Precinct and charged Plaintiff with various crimes under Criminal Docket CR-030486-22KN.

26. At no time did the Plaintiff consent to the unlawful conduct of the Defendants.

27. Defendants' conduct was not privileged or otherwise protected by the law.

28. As a result of Defendants' conduct, Plaintiff was damaged.

AS AND FOR A SECOND CAUSE OF ACTION

29. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "28" with the same force and effect as if restated herein.

30. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD, did commit an assault upon Plaintiff **CALVIN SENNON** by approaching him with outstretched arms, weapons, handcuffs and a taser, thereby intentionally creating a reasonable apprehension of an imminent harmful or offensive contact.

31. Plaintiff experienced a reasonable apprehension of a harmful or offensive contact as a result of Defendants' conduct.

32. At no time did Plaintiff consent to the unlawful conduct of the Defendants.

33. Defendants' conduct was not privileged or otherwise protected by law.

34. As a result of Defendants' conduct Plaintiff was damaged.

AS AND FOR A THIRD CAUSE OF ACTION

35. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "34" with the same

force and effect as if restated herein.

36. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD, committed a harmful or offensive touching upon Plaintiff **CALVIN SENNON** by physically assaulting him, pulling, dragging, punching, kicking, tasing and/or ultimately arresting him.

37. At no time did Plaintiff consent to the unlawful conduct of the Defendants.

38. Defendants' conduct was not privileged or otherwise protected by law.

39. As a result of Defendants conduct, Plaintiffs were damaged.

AS FOR A FOURTH CAUSE OF ACTION

40. Plaintiff repeats, reiterates, and realleges each of the allegations provided in Paragraphs "1" through "39" with the same force and effect as if restated herein.

41. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD, initiated a criminal prosecution against Plaintiff **CALVIN SENNON** alleging one or more violations of the New York State Penal Law.

42. Said criminal prosecution was initiated without the required probable cause.

43. Said prosecution was initiated and continued with malice.

44. Said prosecution continued until approximately August 21,

2023 when all charges against **CALVIN SENNON** were dismissed.

45. Defendants' conduct was not privileged or otherwise authorized by law.

46. As a result of Defendants' conduct, Plaintiff was damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

47. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "46" with the same force and effect as if restated herein.

48. In relevant part, 42 United States Code, Section 1985(3) provides that,

"If two or more persons in any State or Territory conspire... for the purpose of depriving, either directly or indirectly, any person... of the equal protection of the laws, or of equal privileges and immunities under the laws...; in any case of conspiracy set forth in this section, if one or more persons engaged therein do, or cause to be done, any act in furtherance of the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising any right or privilege of a citizen of the United States, the party so injured or deprived may have action for the recovery of damages occasioned by such injury or deprivation, against any one or more of the conspirators."

49. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD conspired to directly violate Plaintiffs' Federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort to assault, batter, falsely arrest and maliciously prosecute him without legal authority or consent.

50. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD furthered the conspiracy by actually assaulting, battering, falsely arresting and maliciously prosecuting Plaintiff without legal authority or consent.

51. As a result of the Defendants' conduct, Plaintiff suffered deprivations of their rights guaranteed by the United States Constitution, the laws of the United States and the State of New York.

52. As a result of the Defendants' unlawful conduct, Plaintiffs were damaged.

AS FOR THE SIXTH CAUSE OF ACTION

53. Plaintiffs repeat, reiterate, and reallege each of the previous allegations provided in Paragraphs "1" through "52" with the same force and effect as if restated herein.

54. 42 U.S.C. §1986 provides in relevant part:

"Every person, who having knowledge that any of the wrongs conspired to be done, and mentioned in section 1985 of this title, are about to be committed, and having power to prevent or aid in preventing the commission of the same, neglects or refuses so to do, if such wrongful act be committed, shall be liable to the party injured, or his legal representatives, for all damages caused by such wrongful act, which such person by reasonable diligence could have prevented.."

55. On October 21, 2022, none of the Defendants prevented or stopped one another from assaulting, battering, falsely arresting

or maliciously prosecuting Plaintiff without legal authority or consent.

56. On October 21, 2022, none of the Defendants prevented or stopped one another from violating Plaintiff **CALVIN SENNON's** constitutional rights.

57. As a result of the Defendants' failure to act Plaintiff was damaged.

AS FOR A SEVENTH CAUSE OF ACTION

58. Plaintiff repeats, reiterates, and realleges each of the allegations provided in Paragraphs "1" through "57" with the same force and effect as if restated herein.

59. Plaintiff brings this cause of action pursuant to 42 USC §1983.

60. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD and acting under color of state law, falsely arrested Plaintiff.

61. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD and acting under color of state law, civilly assaulted Plaintiff.

62. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD and acting under color of state law, committed a battery upon Plaintiff.

63. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD and acting

under color of state law, subjected Plaintiff **CALVIN SENNON** to a malicious prosecution.

64. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD and acting under color of state law, utilized more force than reasonably necessary in their interaction with Plaintiff. Their use of force was excessive.

65. The afore-described actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- i. Freedom from assault to his person;
- ii. Freedom from battery to his person;
- iii. Freedom from false arrest;
- iv. Freedom from being maliciously prosecuted;
- v. Freedom from being subjected to the excessive use of force.

65. Plaintiff in no way consented to the conduct of Defendants.

66. The afore-described conduct of the Defendants was not privileged or otherwise protected by law.

67. As a result of Defendants' conduct, Plaintiff was damaged.

AS AND FOR AN EIGHTH CAUSE OF ACTION

68. Plaintiffs repeat, reiterate, and reallege each of the allegations in Paragraphs "1" through "67" with the same force and

effect as if restated herein.

69. Defendants, jointly and severally, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of **THE CITY OF NEW YORK** and/or the NYPD that is forbidden by the United States Constitution.

70. The aforementioned customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and/or the NYPD included, but were not limited to, arresting citizens without probable cause, manufacturing evidence and/or engaging in falsification in an effort to secure convictions and achieve ulterior motives like overtime compensation.

71. Additionally, **THE CITY OF NEW YORK** engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its police officers and detectives that was the driving force behind the violation of Plaintiffs' rights as described herein.

72. By failing to properly recruit, screen, train, discipline and supervise its officers, including the individually named Defendants herein, **THE CITY OF NEW YORK** has tacitly authorized, ratified, sanctioned and/or impliedly authorized Defendants' acts complained of herein.

73. The foregoing customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff **CALVIN SENNON**.

74. The foregoing customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff **CALVIN SENNON** as alleged herein.

75. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.

76. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- i. Not to be deprived of liberty without due process of law;
- ii. To be free from false arrest;
- iii. To be free from malicious prosecution;
- iv. To be free from unreasonable and unlawful searches;
- v. To be free from unlawful warrantless detention and arrest;
- vi. To be free from the excessive use of force.

77. As a result of the foregoing, Plaintiff **CALVIN SENNON** is entitled to compensatory damages in an amount to be fixed by a jury.

AS AND FOR A NINTH CAUSE OF ACTION

78. Plaintiffs repeat, reiterate, and reallege each of the allegations in Paragraphs "1" through "77" with the same force and effect as if restated herein.

79. On October 21, 2022, the Defendants jointly and severally in their capacity as members of service for the NYPD engaged in extreme and outrageous conduct to wit: intentionally assaulting, battering, striking, punching and tasing **CALVIN SENNON**.

80. The Defendants' conduct was intended to cause Plaintiff **LATOYA SENNON** severe emotional distress, or alternatively disregarded the substantial likelihood that their conduct would cause **LATOYA SENNON** severe emotional distress.

81. As a direct and proximate result of Defendants' conduct, Plaintiff **LATOYA SENNON** suffered severe emotional distress and was otherwise damaged.

AS AND FOR A TENTH CAUSE OF ACTION

82. Plaintiffs repeat, reiterate, and reallege each of the allegations in Paragraphs "1" through "81" with the same force and effect as if restated herein.

83. At all times herein mentioned, **LATOYA SENNON** was the lawful spouse of Plaintiff **CALVIN SENNON**.

84. By reason of the occurrence as aforesaid and the injuries sustained by Plaintiff **CALVIN SENNON**, Plaintiff **LATOYA SENNON** was deprived of the services, society, earnings, and consortium of Plaintiff **CALVIN SENNON** and was caused to expend monies and become liable for diverse sums of money for his care and treatment.

85. Upon information and belief, Plaintiff **LATOYA SENNON** will continue to be deprived of the services, society, earnings and

consortium of Plaintiff **CALVIN SENNON**.

86. BY reason of the foregoing, Plaintiff **LATOYA SENNON** has been damaged.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

87. Plaintiffs repeat, reiterate, and reallege each of the allegations in Paragraphs "1" through "86" with the same force and effect as if restated herein

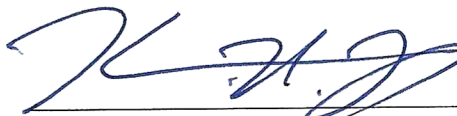
88. Defendant **THE CITY OF NEW YORK** is vicariously liable for the acts of its employees and agents who were on duty and acting within the scope of their employment when they engaged in the wrongful conduct described herein.

89. As a result of afore-described conduct of the Defendants, Plaintiff **CALVIN SENNON** is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, Plaintiffs demand judgment and pray for the following relief, jointly and severally against the Defendants named herein:

1. Full and fair compensatory damages in an amount to be determined by a jury;
2. Punitive damages against the individual Defendants in an amount to be determined by a jury;
3. Reasonable attorney's fees and the costs and disbursements of this action; and
4. Such other and further relief as appears just and proper.

Dated: JAMAICA, NEW YORK
JANUARY 19, 2024

A handwritten signature in blue ink, appearing to read 'Kareem R. Vessup', is written over a horizontal line.

Kareem R. Vessup

VERIFICATION

Kareem R, Vessup, affirms pursuant to CPLR §2106 and under penalty of perjury:

That affirmant is the attorney for the Plaintiffs in the action within; that affirmant has read the foregoing

COMPLAINT

and knows the contents thereof; that the same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason that this verification is not made by Plaintiffs and is made by affirmant is that Plaintiffs are not presently in the county wherein the attorneys for the Plaintiffs maintain their offices.

Affirmant further says that the source of affirmant's information, and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge, are from investigations made on behalf of said Plaintiffs.

Dated: JAMAICA, NEW YORK
JANUARY 19, 2024


Kareem R. Vessup